Montgomery County District Court

Cause No. 2024-CV-0013

Jennifer Boyd, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	June 2, 2024
Plaintiff's counsel:	Jeffrey Hayes, Villa & Dawson LLP

PARTIES

Plaintiff Jennifer Boyd is an individual residing in Texas who was injured in the motor vehicle collision described below. Defendant is an automobile insurance company authorized to do business in the State of Texas, which issued the policy of uninsured/underinsured motorist coverage under which Plaintiff makes claim.

FACTS

On March 24, 2023, Plaintiff was lawfully stopped in traffic on a public roadway in Baytown, Texas, waiting for the vehicle ahead to proceed. A third-party driver failed to stop and struck the rear of Plaintiff's vehicle at a significant speed. The impact pushed Plaintiff's vehicle forward and jolted Plaintiff's body violently against the seat and restraint system. The at-fault driver left the scene or otherwise could not provide adequate coverage for Plaintiff's losses, and Plaintiff submitted a claim to Defendant under the policy's uninsured/underinsured motorist provisions. Defendant has failed to accept fair responsbiility for the claim within a reasonable time.

NEGLIGENCE

The at-fault driver owed Plaintiff a duty to operate a motor vehicle with reasonable care, to keep a proper lookout, to control speed, and to maintain a safe following distance. That dirver breached each of these duties, and the breach proximately caused the collision and Plaintiff's resulting injuries. Defendant owed Plaintiff a contractual duty of good faith and fair dealing in investigating and evaluating the claim, and Defendant breached that duty by delaying investigation and undervaluing the claim without a reasonable basis.

DAMAGES

As a direct reslut of the collision, Plaintiff suffered a serious shoulder injury requiring medical treatment, imaging, and ongoing physical therapy. Plaintiff has incurred medical expenses, lost wages, and loss of earning capacity, and continues to experience pain, reduced range of motion, and limitations in daily activities. Plaintiff seeks recovery of economic and non-economic damages in an amount to be determined by the trier of fact, and Plaintiff demands payment of $228,000.00, together with pre-judgment and post-judgment interest, court costs, and all other relief to which Plaintiff is entitled under Texas law.